



CHAPTER xxxvi.

An Act to confer further powers upon the Brighton and Hove General Gas Company. A.D. 1910.
[26th July 1910.]

WHEREAS the Brighton and Hove General Gas Company (in this Act referred to as "the Company") are incorporated and empowered by the Brighton and Hove Gas Acts 1839 to 1893 to manufacture gas and supply the same within the limits in the said Acts mentioned (which limits are in this Act called "the limits of supply"):

And whereas it is expedient that the several Acts relating to the Company be amended as by this Act provided and that such other provisions be made with respect to the Company's undertaking as are in this Act contained:

And whereas the objects aforesaid cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PRELIMINARY.

1. This Act may be cited as the Brighton and Hove Gas Act 1910 and the Brighton and Hove Gas Acts 1839 to 1893 and this Act may be cited together as the Brighton and Hove Gas Acts 1839 to 1910. Short title.

A.D. 1910.

Incorporation of Acts:

2. The following Acts are hereby incorporated with this Act namely:—

The Gasworks Clauses Acts 1847 and 1871 Provided that section 13 of the former Act shall in its application to the Company be read as if the words “or any premises” were inserted after the words “private building” and as if the words “Provided also that every such contract entered into by the Company shall be alike in terms and amount under like circumstances to all consumers” were added at the end of that section.

Interpretation.

3. In this Act unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts incorporated herewith have the same respective meanings and the expression “the Brighton Corporation” means the mayor aldermen and burgesses of the county borough of Brighton and the expression “the Hove Corporation” means the mayor aldermen and burgesses of the borough of Hove.

WORKS AND LANDS.

Power to sell and lease lands.

4. The Company may subject to the provisions of the Lands Clauses Consolidation Act 1845 sell dispose of or let on lease for such periods as they think fit any lands for the time being belonging to them and which may not at the time be required for the purposes of their undertaking and may retain and hold sell and dispose of any interest in or reversion to any lands so let and any such sale disposal or lease may be for such consideration and subject to such reservations stipulations restrictions and provisions and generally upon such terms and conditions as the Company think fit.

Dwelling-houses for persons in Company's employ.

5. The Company may purchase or take on lease houses cottages and other buildings for persons in their employ and offices showrooms and other buildings for the purposes of their undertaking and may erect maintain and let any such buildings upon any lands for the time being belonging or leased to the Company.

Agreements with proprietors of navigations &c.

6. The Company on the one hand and any conservators proprietors trustees body or person interested in the waters of any river canal and navigation within the limits of supply or any of them on the other hand may from time to time enter into and carry into effect contracts agreements and arrangements for and with respect to the construction laying down alteration

maintenance repair and use of pipes works appliances and apparatus for the purposes of the undertaking of the Company on the bed banks and foreshore of any river canal or navigation within the limits of supply But nothing in this section or in any contract agreement or arrangement entered into thereunder shall be deemed to authorise the laying down alteration maintenance repair and use of any pipes works appliances or apparatus on any portion of the lands and portion or bed of New Shoreham Harbour described in section 62 of the Brighton Corporation Act 1900 and in the schedule to that Act (other than the towing-path). A.D. 1910.

7. For the protection of the county councils of East Sussex and West Sussex (which councils are in relation to their respective counties in this section severally referred to as "the council") the following provisions shall have effect (that is to say):— For protection of county councils of East and West Sussex.

- (1) All mains pipes and works to be laid in or along any main road for the time being repairable by the council or in upon or across any county or main road bridge vested in the council or any roadway over the same or approaches thereto so repairable shall be laid in such position in or at the side thereof and at such depth as the council in writing under the hand of their surveyor may reasonably direct:
- (2) The provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes shall subject to the provisions of this section extend and apply to any such main roads and county or main road bridges and any such roadway over the same and any such approaches thereto and to all other property of the council opened and broken up or interfered with by the Company in the exercise of the powers of this Act Provided that the notice required by the eighth section of that Act shall (except for laying connecting or repairing consumers' service pipes as to which three days' notice shall be given and except in cases of accidental leakage or burst or other emergency in which cases no notice shall be required) be not less than in the case of any such bridge or any such approaches thereto fourteen days instead of three days and in all other cases seven days instead of three days:

A.D. 1910.

- (3) If the Company in the execution of any works in or affecting any such road street bridge or roadway as aforesaid shall cause any damage injury or disturbance to such road street bridge or roadway and shall neglect or refuse to make good all such damage injury or disturbance to the reasonable satisfaction of the council then it shall be lawful for the council after reasonable notice to the Company of the alleged neglect or refusal and of the works which they propose to execute to do all works necessary for making good all such damage injury or disturbance and the Company shall repay to the council all costs charges and expenses which the council shall reasonably and properly incur in carrying out such works including all reasonable expense of superintendence:
- (4) Nothing in this Act shall authorise the Company to interfere with the structural part of any county or main road bridge without the consent in writing of the surveyor of the council which consent shall not be unreasonably withheld and may be given upon such conditions (not being a money payment) as the council or such surveyor may reasonably determine:
- (5) Nothing in this Act contained shall interfere with the right of the council to alter the level or deviate or improve in any manner they think fit any main road in or along which any mains pipes or works of the Company shall have been laid and the Company shall forthwith on receiving notice in writing under the hand of the clerk or surveyor to the council so to do alter the position of any such mains pipes or works in the manner and to the extent prescribed by such notice or as in case of difference shall be determined by arbitration in the manner hereinafter prescribed and the council shall repay to the Company the expense reasonably incurred by the Company in effecting any such alteration of the position of any such mains pipes or works:
- (6) If any difference at any time arises between the council and the Company touching this section or anything to be done or not to be done thereunder such difference shall be settled by an arbitrator to be agreed upon between them or failing such agreement to be

appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference to arbitration as aforesaid.

A.D. 1910.

8.—(1) Notwithstanding anything contained in this Act or in any Act incorporated therewith the Company shall not without the consent in writing of the London Brighton and South Coast Railway Company (in this section referred to as “the railway company”) under the hand of their secretary or engineer enter upon take use or otherwise interfere with or affect any lands or property of the railway company Provided that the Company shall be entitled without such previous consent to enter upon the bridge known as the Old Shoreham Bridge and the approaches thereto and the road therefrom to the Sussex Pad Inn for the purpose of repairing renewing relaying or substituting new pipes or apparatus for any pipes or apparatus of the Company that may at the passing of this Act be laid therein or thereover Provided also that in the event of sudden emergency the Company shall be entitled without such previous written consent to enter upon any lands or property of the railway company for the purpose of remedying any defect in any pipes or apparatus of the Company that may require immediate amendment or repair but this proviso shall not entitle the Company without such written consent as aforesaid to enter upon or otherwise interfere with or affect any lands or property of the railway company upon which any railway of the railway company is or shall be laid.

For protection of London Brighton and South Coast Railway Company.

(2) Any dispute or difference which may arise between the Company and the railway company with reference to this section or in any way arising thereout shall be referred to a single arbitrator to be selected in case of dispute by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such reference.

9. In executing any works and exercising any powers by the Brighton and Hove Gas Acts 1839 to 1910 authorised so far as they affect streets roads bridges and other property vested in or under the jurisdiction of the Brighton Corporation or the Hove Corporation (all of which are in this section comprised in the term “street”) the following provisions for the protection of the Brighton Corporation and the Hove Corporation shall unless otherwise agreed between the Brighton Corporation or

For protection of corporations of Brighton and Hove.

A.D. 1910: the Hove Corporation as the case may be and the Company have effect in addition to the other provisions for their protection or benefit in this Act or the Brighton and Hove Gas Acts 1839 to 1910 or the Acts incorporated herewith contained (that is to say):—

- (1) In this section the expression “local authority” shall be deemed to refer to the Brighton Corporation in relation to streets within the borough of Brighton and to the Hove Corporation in relation to streets within the borough of Hove and the expression “the surveyor” shall mean in relation to the borough of Brighton the surveyor of that borough and in relation to the borough of Hove the surveyor of that borough:
- (2) All mains pipes and works to be laid in along or across any street shall be laid in such position in or at the side thereof and at such depths as the local authority in writing under the hand of the surveyor may reasonably direct:
- (3) Any question in this section to be referred to arbitration shall be settled by an engineer to be agreed upon between the local authority and the Company and failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference to arbitration as aforesaid.

PROVISIONS AS TO ISSUE OF CAPITAL.

New shares
or stock to
be sold by
auction or
tender.

10.—(1) All shares or stock issued by the Company after the passing of this Act shall be issued in accordance with the provisions of this section.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided as follows:—

- (A) Notice of the intended sale shall be given in writing to the town clerk of each borough and the clerk of each urban district and rural district within the limits of supply and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised

once in each of two consecutive weeks in one or more local newspapers circulating within the said boroughs: A.D. 1910.

- (B) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:
- (C) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds:
- (D) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum and in the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:
- (E) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have or has been so offered for sale and are or is not sold may be disposed of by the directors at a price not less than the reserve price put upon the same for the purpose of sale by auction or tender or may be offered at the reserve price to the holders of ordinary and preference shares or stock of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Company and to the consumers of gas supplied by the Company in such proportions as the Company may think fit or to one or more of these classes of persons only Provided in the case of an offer to holders of shares or stock that if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been or has been offered for sale in accordance with subsection (2) or with subsections (2) and (3) and are or is not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold

A.D. 1910. may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of the respective shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the respective shares or stock.

RESERVE SPECIAL PURPOSES AND CAPITAL REDEMPTION FUNDS &c.

Power to
create a re-
serve fund.

11. Where in any half-year the dividends payable by the Company on the ordinary capital of the Company shall exceed the standard rates by reason of the price charged by the Company for gas in such half-year being below the standard price then out of the amount of the divisible profits of the Company applicable to the payment of such excess of dividends the Company may in such half-year set apart such sum as they shall think fit and all sums (if any) so set apart by the Company and any reserve fund of the Company existing at the passing of this Act shall be invested in securities in which trustees are authorised by law to invest money or in such other securities as shall be authorised by a resolution of the Company and the dividends and interest arising from such securities shall also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividends in any half-year in which the clear profits of the Company shall be insufficient to enable the Company in such half-year to pay the dividends at the standard rates on the ordinary capital of the Company and save as in this Act provided no sum shall in any half-year be carried by the Company to any reserve fund.

Power to
create a
special pur-
poses fund.

12.—(1) The directors of the Company may if they think fit in any half-year appropriate out of the revenue of the Company as part of the expenditure on revenue account any sum not exceeding an amount equal to one half per centum of the paid-up capital of the Company including premiums to a fund to be called "the special purposes fund."

(2) The special purposes fund shall be applicable only to meet such charges as a chartered accountant or incorporated

accountant being an auditor of the Company or appointed for the purpose by the Board of Trade shall approve as being— A.D. 1910.

(A) Expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or

(B) Expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works.

(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one-tenth part of the paid-up capital of the Company including premiums.

(4) The moneys forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the Company to which capital is properly applicable or may be used partly in the one way or partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

(6) The money or securities standing to the credit of the insurance fund of the Company at the passing of this Act shall be credited to the special purposes fund.

13. Whereas under the provisions of sections 50 and 51 of the Brighton and Hove Gas Act 1881 the Company were required to cease to manufacture gas or residual products at the Black Rock Works of the Company or after a period of ten years at any place within the parish of Hove and have accordingly abandoned such works and ceased to manufacture at their then existing works in the said parish of Hove and in consequence thereof capital to the extent of fifty-seven thousand pounds or thereabouts of capital expended in the works so abandoned has become unproductive and it is expedient that the Company should cancel such unproductive capital it is hereby provided as follows:—

Capital re-
demption
fund.

(1) The directors of the Company may if they think fit in any half-year appropriate out of the revenue of the Company as part of the expenditure on revenue

A.D. 1910.

account any sum not exceeding one thousand eight hundred pounds to a fund to be called "the capital redemption fund":

(2) Every sum credited to the said fund shall be applied by the directors from time to time and in each case as soon as is reasonably practicable after such sum has been credited to the said fund under the provisions of this section in purchasing ordinary or preference stock of the Company and all stock so purchased shall immediately after the purchase thereof be cancelled and shall thenceforth be and be taken to be extinguished and the directors shall cause the same to be duly noted as so cancelled and extinguished in the books of the Company. Provided always that all stock so purchased otherwise than in the open market shall be purchased at a price not exceeding the middle price of the then current official quotation for the same on the London Stock Exchange or at the price (as recorded in the Company's books) at which the last transaction in the same class of stock has taken place whichever of these prices shall be the lower:

(3) This section shall cease to operate so soon as the Company shall have appropriated and applied as aforesaid sums amounting in the aggregate to fifty-seven thousand pounds:

(4) The Company shall not re-issue any stock which shall have been cancelled under the provisions of this section.

Application
of excess of
profits over
authorised
rates of
dividend.

14. If the clear profits of the undertaking of the Company in any year amount to a larger sum than is sufficient to pay the dividends on the preference capital and the dividends at the authorised rates on the ordinary capital of the Company the excess shall be carried to the credit of the divisible profits of such undertaking for the next following year:

Provided that the sum standing to the credit of such divisible profits shall not at any time exceed the amount required to pay one year's dividends at the authorised rates on the preference and ordinary capital of the Company.

DIRECTORS AND AUDITORS.

A.D. 1910.

15. Section 17 (Directors' fees) of the Brighton and Hove Gas Act 1881 shall be read and have effect as if the sum of two thousand two hundred and fifty pounds had been inserted in that section instead of the sum of fifteen hundred pounds.

Amendment
of section 17
of Brighton
and Hove
Gas Act
1881.

16.—(1) No vacancy arising by reason of any of the persons who at the date of the passing of this Act are auditors of the Company ceasing to hold office from any cause (other than retirement by rotation of any such person who offers himself for re-election) shall be filled until the number of auditors of the Company be reduced below two and thereafter the prescribed number of auditors of the Company shall be two.

Auditors.

(2) Notwithstanding anything contained in the Companies Clauses Consolidation Act 1845 no person (other than a person who at the date of the passing of this Act is an auditor of the Company) shall be elected an auditor of the Company who shall not be either a member of the Institute of Chartered Accountants or of the Society of Incorporated Accountants and Auditors and it shall not be necessary for any person who shall be an auditor of the Company to hold shares or stock in the Company.

(3) Subject as aforesaid the provisions of the Companies Clauses Consolidation Act 1845 relating to auditors shall apply to auditors of the Company.

(4) The provisions of this section shall not extend to or affect any person appointed as special auditor by the Brighton Corporation under the provisions in that behalf contained in section 21 of the Brighton and Hove General Gas Company's Act 1866 and the provisions of such section relating to the appointment by the Brighton Corporation of a special auditor shall remain in full force.

(5) The provisions of this section shall not extend to or affect any person appointed as special auditor by the Hove Corporation under the provisions in that behalf contained in section 35 of the Brighton and Hove Gas Act 1879 and the provisions of such section relating to the appointment by the Hove Corporation of a special auditor shall remain in full force.

MEETINGS.

17. From and after the passing of this Act the Brighton and Hove Gas Acts 1839 to 1893 shall be read and construed

General
meetings.

A.D. 1910. as if the months of February or March and of August or September were substituted for the times prescribed by the said Acts for the holding of half-yearly general meetings of the Company.

PRICE SUPPLY AND TESTING OF GAS.

Price of gas. **18.**—(1) From and after the first day of January one thousand nine hundred and eleven the price to be charged by the Company for gas supplied by them in the parishes of Brighton Hove Preston and Aldrington as existing at the date of the passing of this Act (which parishes are in this Act referred to as “the inner area”) shall be three shillings and twopence per one thousand cubic feet and such price is in this Act referred to as “the standard price”:

Provided that the Company may increase or reduce the price charged by them for gas above or below the standard price subject to a reduction or increase in the dividends payable by the Company on the ordinary capital as follows:—

In respect of any half-year during any part of which the price charged by the Company shall have been one penny or part of a penny above the standard price the dividends payable by the Company shall in respect of each penny or part of a penny by which the standard price shall have been increased be reduced below the standard rates of dividends by two shillings and sixpence on every one hundred pounds of ordinary paid-up capital and so in proportion for any fraction of one hundred pounds:

And in respect of any half-year during the whole of which the price charged by the Company shall have been one penny or more below the standard price the dividends payable by the Company may in respect of each penny by which the standard price shall have been reduced be increased above the standard rates by two shillings and sixpence on every one hundred pounds of ordinary paid-up capital and so in proportion for any fraction of one hundred pounds.

(2) From and after the first day of January one thousand nine hundred and eleven the prices to be charged by the Company for gas supplied by them in the parishes and places within their limits of supply other than as aforesaid (which other parishes

and places are in this Act referred to as "the outer area") shall not at any time exceed the price for the time being charged by the Company in the inner area by more than the following amounts (namely):— A.D. 1910.

In the parishes of Portslade-by-Sea and New Shoreham and such parts of the parishes of Southwick Kingston-by-Sea and Old Shoreham as lie to the south of the upper road leading from Brighton to Old Shoreham threepence per one thousand cubic feet;

In the parishes of Portslade and Patcham and such parts of the parishes of Southwick and Kingston-by-Sea as lie to the north of the said upper road leading from Brighton to Old Shoreham and so much of the parish of Rottingdean as lies to the west of an imaginary line drawn from the chimney of the ventilating shaft of the Brighton Intercepting and Outfall Sewers Board at Roedean to the tower of the parish church at Ovingdean sixpence per one thousand cubic feet;

In the parishes of Lancing and Ovingdean and in the remainder of the parishes of Old Shoreham and Rottingdean one shilling per one thousand cubic feet;

In any other parish or place within the outer area one shilling and threepence per one thousand cubic feet.

(3) Notwithstanding anything in this section contained the Company may charge in any one or more parishes comprising the outer area a price or prices less than the prices which they are from time to time authorised to charge in such parish or parishes provided that such reduced prices shall not at any time be less than the price or prices charged during the same time within the inner area.

19.—(1) The Company may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to other private ordinary consumers within the same portion of the limits of supply through any other kind of meter. Charge for gas supplied by means of prepayment meters.

(2) The Company shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at a rate of tenpence per one

A.D. 1910. thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at a rate not exceeding one shilling per one thousand cubic feet if such fittings include a cooking or heating stove:

The said charge shall include the providing letting fixing repairing and maintenance of the meter fittings and stove and the cost of collection and other costs incurred by the Company in connection with such meter fittings and stove.

(3) The maximum charge for the hire of a prepayment meter without fittings shall be at the rate of ten per centum per annum on the cost of the meter.

(4) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor through or by means of such meter or appliance.

Testing
place.

20. The testing place provided by the corporation of the borough of Brighton under section 41 of the Brighton and Hove General Gas Company's Act 1866 and the testing place which has been provided at the Company's premises at Hove shall be the prescribed testing places for the purposes of the Gasworks Clauses Act 1871.

Testing for
quality.

21.—(1) The quality of the gas supplied by the Company shall with respect to its illuminating power be such as to produce at the testing places when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fifteen sperm candles of six to the pound each consuming one hundred and twenty grains of sperm per hour and shall be in all respects in accordance with the provisions of the Gasworks Clauses Act 1871.

(2) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand No. 2 the photometer shall be the bar photometer or the table photometer the standard light shall be that supplied by Harcourt's ten-candle Pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light Provided that the Board of Trade may on the application of the Company or the local authority approve the use of any other burner photometer

or standard light which may appear to the Board to be equally or more suitable for the testing. A.D. 1910.

(3) The Company shall within three months after the passing of this Act provide all the apparatus required by this Act for the testing of gas and shall at all times keep the same in proper order and repair.

22.—(1) All gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than eight tenths of one inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer. Pressure.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Act subject to the terms of his appointment at the testing places or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied. The Company shall afford to the examiner all reasonable facilities for making the test.

23. No penalty shall be incurred by the Company for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by any circumstance beyond the control of the Company. Saving as to penalties.
Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company.

DISTRIBUTION OF GAS.

24. The Company may on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street or road laid out but not dedicated to public use supply such premises with gas and may lay down take up alter relay repair or renew in across or along or out of such street or road such pipes and apparatus as may be requisite or proper for furnishing such supply and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes so far as they are applicable for and not inconsistent with the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof: Power to lay pipes in streets or roads not dedicated to public use.

Provided that the local authority of the borough or urban district within which such street is situate shall for the purposes

A.D. 1910. of section 9 of the Gasworks Clauses Act 1847 be deemed in addition to any other persons to be persons having the control or management of such street or road and in relation to any such street or road the said local authority may enforce the provisions of section 10 of the said Act.

Power to
supply gas
fittings &c.

25.—(1) The Company may sell let for hire fix repair and remove but shall not manufacture engines stoves ranges pipes and other fittings (hereinafter referred to as “fittings”) for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord’s remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the person in whose possession the same may be Provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Company as the actual owners thereof.

As to con-
struction and
placing of
pipes &c.
between
mains and
meters.

26. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

- (1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer either in the first instance or on the occasion of any renewal between the Company’s mains and the meter and (so far as the same are intended to be covered over) on the consumer’s premises :
- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time :
- (3) The specification shall be published twice in some newspaper circulating within the limits of supply and a copy thereof shall be kept exhibited in the office or offices of the Company :

- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building : A.D. 1910.
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with :
- (6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

PROVISIONS AFFECTING CONSUMERS.

27. At least twenty-four hours' notice in writing shall be given to the Company by every gas consumer before he shall quit any premises supplied with gas by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first

Gas consumers to give notice to Company before removing.

A.D. 1910. occur. Notice of the effect of this enactment shall be endorsed upon every demand note for gas charges payable to the Company.

Notice to
discontinue
supply of
gas.

28. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company.

Power to
refuse supply
to persons in
debt for
other
premises.

29. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying to them all charges due from him to the Company for gas supplied they may refuse to furnish to him a supply of gas until he pays the same.

Power to enter
premises
and remove
fittings.

30. The power to enter premises and to remove pipes meters fittings or apparatus conferred upon the Company by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Company shall not require to take a supply of gas from the Company or to hire from the Company all or any of the pipes meters fittings or apparatus belonging to the Company and let by them on hire to any former occupier of such premises.

Period of
error in
defective
meters.

31. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Company.

Power to
require use
of anti-fluc-
tuators for
gas engines.

32. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator together with an effective non-return valve and shall at all times at his own expense keep such anti-fluctuator and valve in proper repair and in default of his so using or keeping such anti-fluctuator and valve in proper repair the Company may cease to supply gas to such consumer. The Company shall have access to and be at liberty to take off

[10 EDW. 7 & *Brighton and Hove Gas Act*, 1910. [Ch. xxxvi.]
1 GEO. 5.]

remove test inspect and replace any such anti-fluctuator and valve at all reasonable times such taking off removing testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator and valve be found in proper order but otherwise at the expense of such consumer. A.D. 1910.

33. Any notice to be served on a person supplied with gas shall be sufficiently authenticated by the signature of the secretary to the Company or other officer of the Company for the time being authorised in writing by the directors thereof being affixed thereto in writing or by a stamp or if it be a notice to pay any charge in respect of a supply of gas or gas fittings by the name either of the secretary or such other officer as aforesaid being affixed thereto in print or by a stamp and any such notice may be served on such person either personally or by sending the same through the post by a prepaid letter addressed to him by name at his last-known or usual place of abode or of business or by delivering the same to some inmate at his last-known or usual place of abode or business or to any inmate of the premises supplied or if such premises be unoccupied and the place of abode of the person to be served is after proper inquiry unknown it shall in the case of any notice not being a notice to pay any charge be sufficient to affix such notice or a copy thereof upon some conspicuous part of such premises. Form and service of notices by Company.

MISCELLANEOUS.

34. Where the payment of more than one sum by any person is due under the Brighton and Hove Gas Acts 1839 to 1910 any summons or warrant issued for the purposes of any of those Acts in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him. Several sums in one summons.

35. Proceedings for the recovery of any demand made under the authority of the Brighton and Hove Gas Acts 1839 to 1910 or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action. Recovery of demands.

36. Save as otherwise by this Act expressly provided all offences against the Brighton and Hove Gas Acts 1839 to 1910 and all penalties forfeitures costs and expenses imposed or Recovery of penalties.

A.D. 1910. recoverable under those Acts or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Power to
hold licences
under letters
patent.

37. The Company may take hold and use within the limits of supply patent rights or licences or authorities (not being exclusive) under any letters patent for the use of any invention relative to the manufacture conversion utilisation or distribution of gas and of such materials and residual products as aforesaid.

Works below
high-water
mark not to
be com-
menced with-
out consent
of Board of
Trade.

38. The Company shall not under the powers of this Act construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Company shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Company and the amount of such costs and charges shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily.

Crown
rights.

39. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose

[10 EDW. 7 & *Brighton and Hove Gas Act*, 1910. [Ch. xxxvi.]
1 GEO. 5.]

(which consent the said Commissioners and Board are hereby A.D. 1910.
respectively authorised to give).

40. The Acts specified in the first column to the schedule Repeals.
to this Act are hereby repealed to the extent specified in the
second column of that schedule but so far as relates to the
enactments set forth in the second part of the said schedule
such repeal shall take effect as from the first day of January
one thousand nine hundred and eleven.

41. All costs charges and expenses of and incidental to the Costs of Act.
preparing for obtaining and passing of this Act or otherwise in
relation thereto shall be paid by the Company and may in whole
or in part be charged against revenue.

[Ch. xxxvi.] *Brighton and Hove Gas Act, 1910.* [10 EDW. 7 &
1 GEO. 5.]

A.D. 1910. The SCHEDULE referred to in the foregoing Act.

FIRST PART.

Act.	Extent of Repeal.
The Brighton and Hove Gas Act 1839 (2 Vict. c. xxxviii.).	Sections 5 53 54 55 85 to 89 93 and 96 to 102.
The Brighton and Hove General Gas Company's Act 1866.	Sections 11 12 45 to 48 and 51.
The Brighton and Hove Gas Act 1873 -	Section 5 section 6 (so far as it relates to the burner to be used in testing and to the quality of gas) and sections 7 and 8.
The Brighton and Hove Gas Act 1879 -	Sections 10 to 13 inclusive and sections 29 32 and 34.
The Brighton and Hove Gas Act 1893 -	Section 9 section 10 (so far as it relates to the furnishing of pipes stoves apparatus fittings or con- veniences) sections 15 to 18 in- clusive and sections 24 25 26 and 35.

SECOND PART.

Act.	Extent of Repeal.
The Brighton and Hove Gas Act 1854 -	Section 10.
The Brighton and Hove Gas Act 1873 -	Section 3.
The Brighton and Hove Gas Act 1881 -	Section 46.
The Brighton and Hove Gas Act 1893 -	Section 20.

Printed by EYRE and SPOTTISWOODE, LTD.,

FOR

ROWLAND BAILEY, Esq., M.V.O., the King's Printer of Acts of Parliament.

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